



THE POLICE COMMISSIONER
CITY OF NEW YORK

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2018-19665 regarding Police Officer Johnson Jacques

Date: March 2, 2022

I carefully considered the facts and evidence presented in the Report and Recommendation from Assistant Deputy Commissioner Trials, Josh Kleiman. While I agree with the findings, I do not agree with the proposed penalty recommendation of dismissal from the Department.

Police Officer Jacques was found not guilty of the majority of the specifications against him, except for a singular specification of displaying a firearm during a domestic argument in 2015. In carefully reviewing this matter, I measured several factors against the penalty recommendation, including Police Officer Jacques' otherwise unblemished career record both before and after this incident, as well as the favorable reviews he has received from his supervisors. I also considered that Police Officer Jacques was demoted from the rank of Sergeant due to this incident — a justified but impactful consequence of his actions.

Thus, in consideration of the aforementioned, I have determined that a penalty less than the presumptive penalty of dismissal as provided for in the Disciplinary System Penalty Guidelines is appropriate in this matter. However, due to the nature of the misconduct, I believe a period of dismissal probation is warranted. Further, I strongly believe that Police Officer Jacques will benefit from additional domestic violence counseling beyond any counseling which he has already completed. These additional penalty conditions will also serve as a deterrence from future misconduct.

Therefore, I determined that a penalty to consist of the forfeiture of thirty (30) suspension days without pay (already served), one (1) year dismissal probation, and 24-week domestic violence counseling, will be imposed in this matter.


Keechant Sewell
Police Commissioner